

		While defendant Vasquez is not a signatory on the agreement, she argues the agreement, by its terms, extends to employees of Urth Caffé, of which she is one. (Boucher v. Alliance Title (2005) 127 Cal.App.4th 262, 271 [“a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately founded in and intertwined’ with the underlying contract obligations.”].)
105	Guinoo v. Crisostomo 2021-01224958	A Notice of Stay due to bankruptcy of Defendant Bryan Crisostomo was filed with the court. This is the second time Defendant Bryan Crisostomo has filed a notice of stay due to bankruptcy proceedings. The motion to enforce settlement Agreement and appoint a partition referee will be continued, as required by law. Counsel and any unrepresented parties shall appear at the scheduled hearing time to discuss a continued date for the hearing on these motions.
106	Jarvis Restoration v. Mercury Insurance Services 2026-01546848	DEMURRER TO SECOND CAUSE OF ACTION – OVERRULED MOTION TO STRIKE PUNITIVE DAMAGES CLAIM – GRANTED Defendant Mercury Insurance Services (“Defendant”) filed a demurrer and motion to strike. In the demurrer, Defendant demurs to the second cause of action for bad faith. In the motion to strike, Defendant moves to strike Plaintiff’s claim for punitive damages. Plaintiff Jarvis Restoration, LLC (“Plaintiff”) opposed both motions. <u>DEMURRER</u> As stated in Chateau Chamberay Homeowners Ass’n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 345, as modified on denial of reh’g (July 30, 2001): “[B]efore an insurer can be found to have acted tortiously (i.e., in bad faith), for its delay or denial in the payment of policy benefits, it must be shown that the insurer acted unreasonably or without proper cause.” (Chateau Chamberay Homeowners Ass’n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 347.) “It is now settled law in California that an insurer denying or delaying the payment of policy benefits due